



## CHAPTER lviii.

An Act to empower the Corporation of Birmingham to  
construct additional tramways to make certain street  
works to amend certain provisions of the Acts  
relating to their waterworks undertaking and for  
other purposes. A.D. 1905.  
[30th June 1905.]

**W**HEREAS the lord mayor aldermen and citizens of the city  
of Birmingham (in this Act called "the Corporation") are  
the owners of tramways within the city most of which are in lease  
to various companies and bodies but the terms of such leases  
will shortly expire and the Corporation are entitled to and have  
given notice to purchase other tramways within the city :

And whereas by the Birmingham Corporation Act 1903 the  
Corporation are subject to the lessees rights empowered to place  
and run carriages on and to work and to demand and take tolls  
and charges in respect of tramways within the city and for the  
time being belonging to the Corporation :

And whereas it is expedient that the Corporation should be  
empowered to construct the additional tramways by this Act  
authorised :

And whereas some parts of the Tramways (Nos. 28 and 33)  
by this Act authorised will be laid down in certain streets along  
some parts of which the city boundary passes and it is expedient  
that the whole width of the carriageway of such parts of the  
said streets should for tramway purposes be deemed to be within  
the city as by this Act provided :

And whereas it is expedient that the Corporation should be  
empowered to make and maintain the street works and to acquire  
the lands within the city in this Act respectively mentioned or  
referred to :



A.D. 1905.

And whereas by the Birmingham Corporation Water Act 1892 the Corporation were empowered to take collect divert impound and use all the waters of the Rivers Elan and Claerwen at and above the dam of the Caban Coch Reservoir and of all the tributary streams and springs of the said rivers above the said dam 'subject to the provisions in the said Act contained and it is expedient to modify such provisions as by this Act provided :

And whereas it is expedient to make such other provision as this Act contains :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation of the cost of constructing the tramways and street works by this Act authorised including the purchase of lands and the reconstruction of existing tramways and such estimates are as follows :—

|                                                                                                                                                                                                                                   |         |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|
|                                                                                                                                                                                                                                   | £       |
| For and in connexion with the construction of the tramways by this Act authorised -                                                                                                                                               | 295,530 |
| For the reconstruction of existing tramways and electrical equipment of Corporation tramways including the purchase of land for and the construction of generating and transforming electrical works and tramway depôts and works | 554,820 |
| For and in connexion with the purchase of land for and the execution of street works by this Act authorised -                                                                                                                     | 202,200 |

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas by the Birmingham Corporation (Consolidation) Act 1883 it is enacted to the effect (section 288) that no application shall be made to Parliament by the Corporation for further powers or for power to raise further sums of money for the purposes of that Act or for the purposes of any further or other Act until the Corporation shall by notice given in two consecutive weeks in at least two of the newspapers published in the city have called a public meeting of the ratepayers of the city at which meeting the Corporation shall cause to be stated the object of the intended application to Parliament nor unless at such meeting the Corporation shall be authorised by a majority of the



ratepayers present at such meeting to make such application A.D. 1905.  
 Provided that the mayor of the city shall be the chairman of such meeting and the voting at such meeting shall be according to the principle established by the Acts of the fifty-eighth George the Third chapter sixty-nine and fifty-ninth George the Third chapter eighty-five for the regulation of vestries Provided also that if a poll shall be demanded at the said meeting in respect of any question it shall be open to all the ratepayers within the city during a period of three days next following the holding of such meeting to signify their votes in writing in respect of such question and the same shall be decided by the majority of votes so signified and the principle of voting shall be in accordance with the principle to be adopted at the meeting under the provisions in the said section contained:

And whereas under the last recited enactment the Corporation caused to be held a meeting of the ratepayers of the city on the seventh day of December one thousand nine hundred and four and at that meeting a resolution was duly passed authorising the council to make an application to Parliament for an Act to empower the Corporation to construct additional tramways and to make certain street works and for other purposes:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace for the county of Warwick the county of Worcester and the city of Birmingham respectively and are in this Act respectively referred to as the deposited plans sections and books of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

## PART I.

### PRELIMINARY.

1. This Act may be cited for all purposes as the Birmingham Short title. Corporation Act 1905.



A.D. 1905.

Incorporation of Acts.

2. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act namely:—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that section 19 shall in regard to its incorporation with this Act be read and have effect as if the words “but  
“ nothing in this Act contained shall authorise any local  
“ authority to place or run carriages upon such tramway  
“ and to demand and take tolls and charges in respect  
“ of the use of such carriages” were omitted from that section:

Provided also that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-General The expression “telegraphic line” in this Act has the same meaning as in the Telegraph Act 1878.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated by this Act and by the Act of 1892 and the Act of 1903 have the same respective meanings unless there be something in the subject or context repugnant thereto And in this Act unless the subject or context otherwise requires—

“The Corporation” means the lord mayor aldermen and citizens of the city of Birmingham;

“The city” means the city of Birmingham;

“The council” means the council of the city;

“The town clerk” means the town clerk of the city;

“The borough fund” and “the borough rate” mean respectively the borough fund and borough rate of the city;

“The Conservators” means the Board of Conservators of the Wye Fishery District;

“The Act of 1892” and “the Act of 1903” mean respectively the Birmingham Corporation Water Act 1892 and the Birmingham Corporation Act 1903;



“The tribunal” means the jury arbitrators umpire or other authority to whom any question of disputed compensation under this Act is referred. A.D. 1905. —

## PART II.

### TRAMWAYS.

4. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways (all within or deemed to be within the city) herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates sleepers channels passages and tubes for ropes cables wires and electric lines junctions turntables turnouts crossings passing-places posts conduits boxes manholes stables carriage houses engine and boiler houses sheds buildings engines dynamos batteries transforming stations works and conveniences connected therewith respectively. Power to make tramways.

The tramways in this section referred to and authorised by this Act are—

Tramway No. 1 (double line 2·38 chains in length) commencing in Summer Row by a junction with the existing tramway thence proceeding in a south-easterly direction to and terminating in Summer Row by a junction with Tramway No. 2:

Tramway No. 2 (single line 2 furlongs and 1·51 chains in length) commencing in Summer Row by a junction with Tramway No. 1 thence proceeding in a generally north-easterly direction into and along Great Charles Street Margaret Street Edmund Street Congreve Street and into along and terminating in Summer Row:

Tramway No. 3 (double line 7 furlongs and 9·04 chains in length) commencing in Parade by a junction with the existing tramway thence proceeding in a northerly direction into and along Newhall Hill Frederick Street Warstone Lane Hingeston Street and into along and terminating in All Saints Street:

Tramway No. 4 (double line 1 mile and 4·06 chains in length) commencing in All Saints Street by a junction with Tramway No. 3 at its termination thence proceeding in a north-westerly direction into and along Lodge Road Winson Green Road Foundry Road and into along and terminating in Victoria Street Winson Green:



A.D. 1905.

Tramway No. 5 (double line 6 furlongs and 2·29 chains in length) commencing in All Saints Street by a junction with Tramway No. 3 at its termination thence proceeding in a northerly direction across Lodge Road into and along Goode Street and into along and terminating in Park Road :

Tramway No. 6 (3 furlongs and 6·70 chains in length whereof 4·18 chains will be double line and 3 furlongs 2·52 chains will be single line) commencing in Corporation Street by a junction with the existing tramway thence proceeding in a south-westerly direction along Corporation Street Martineau Street Dale End and into along and terminating in Coleshill Street by a junction with Tramway No. 10 :

Tramway No. 7 (single line 1 furlong and 0·04 chain in length) commencing in Corporation Street by a junction with the existing tramway thence proceeding in a generally easterly direction into and along James Watt Street and into along and terminating in Coleshill Street by a junction with Tramway No. 10 :

Tramway No. 8 (single line 1 furlong and 4·84 chains in length) commencing in Dale End by a junction with Tramway No. 6 thence proceeding in a generally northerly direction into and along Stafford Street and into and along and terminating in Lancaster Street by a junction with the existing tramway :

Tramway No. 9 (single line 2·04 chains in length) commencing in Stafford Street by a junction with Tramway No. 8 thence proceeding in a generally north-easterly direction into along and terminating in Aston Street by a junction with the existing tramway :

Tramway No. 10 (double line 1 mile 1 furlong and 3·47 chains in length) commencing in Coleshill Street by a junction with Tramways Nos. 6 and 7 at their terminations thence proceeding in a generally north-easterly direction along Coleshill Street Prospect Row Ashted Row Great Francis Street and into along and terminating in Saltley Road :

Tramway No. 11 (1 mile 2 furlongs and 1·72 chains in length whereof 3 chains will be double line and 1 mile 1 furlong and 8·72 chains will be single line) commencing in Nechells Park Road by a junction with the existing tramway thence



proceeding in a north-easterly direction along Nechells Park Road Cuckoo Road Long Acre Thimble Mill Lane and into along and terminating in Nechells Park Road: A.D. 1905.

Tramway No. 12 (double line 2 miles 2 furlongs and 0·68 chain in length) commencing in Saltley Road by a junction with the existing tramway thence proceeding in an easterly direction along Saltley Road Saltley Viaduct High Street Saltley and into along and terminating in Washwood Heath Road:

Tramway No. 13 (3 furlongs and 6·11 chains in length whereof 1 furlong 2·17 chains will be double line and 2 furlongs 3·94 chains will be single line) commencing in High Street Saltley by a junction with Tramway No. 12 thence proceeding in a south-easterly direction into along and terminating in Alum Rock Road:

Tramway No. 14 (1 mile 3 furlongs and 9·63 chains in length whereof 5 furlongs and 2·77 chains will be double line and 6 furlongs 6·86 chains will be single line) commencing in Fazeley Street by a junction with the existing tramway thence proceeding in a generally south-easterly direction into and along Fazeley Street Great Barr Street Garrison Lane and into along and terminating in Bordesley Green:

Tramway No. 15 (double line 5 furlongs and 9·31 chains in length) commencing in Bordesley Green by a junction with Tramway No. 14 thence proceeding in a north-easterly direction along and terminating in Bordesley Green:

Tramway No. 16 (3 furlongs and 2·50 chains in length whereof 8 chains will be double line and 2 furlongs and 4·50 chains will be single line) commencing in Coventry Road by a junction with the existing tramway thence proceeding in an easterly direction into and along Cattell Road and into along and terminating in Bordesley Green by a junction with Tramway No. 15:

Tramway No. 17 (double line 1 mile 2 furlongs and 4·85 chains in length) commencing in Coventry Road by a junction with the existing tramway thence proceeding in a south-easterly direction into and along Bordesley Park Road Bolton Road Byron Road and into along and terminating in Waverley Road:



A.D. 1905.

Tramway No. 18 (single line 8·05 chains in length) commencing in Albert Street by a junction with the existing tramway thence proceeding in a south-westerly direction into and along and terminating in Moor Street by a junction with Tramway No. 24 :

Tramway No. 19 (single line 1·52 chains in length) commencing in Moor Street by a junction with Tramway No. 18 thence proceeding in a north-westerly direction into along and terminating in Albert Street by a junction with the existing tramway :

Tramway No. 20 (single line 1 furlong and 1·27 chains in length) commencing in Albert Street by a junction with the existing tramway thence proceeding in a westerly direction along Albert Street High Street Carrs Lane and into along and terminating in Moor Street by a junction with Tramway No. 24 :

Tramway No. 21 (single line 1·21 chains in length) commencing in Carrs Lane by a junction with Tramway No. 20 thence proceeding in a south-westerly direction into along and terminating in Moor Street by a junction with Tramway No. 18 :

Tramway No. 22 (single line 1·26 chains in length) commencing in High Street by a junction with Tramway No. 6 thence proceeding in an easterly direction into along and terminating in Albert Street by a junction with Tramway No. 20 :

Tramway No. 23 (single line 1·42 chains in length) commencing in Dale End by a junction with Tramway No. 6 thence proceeding in a south-westerly direction into and along and terminating in High Street by a junction with Tramway No. 20 :

Tramway No. 24 (double line 3 furlongs and 4·44 chains in length) commencing in Moor Street by a junction with Tramways Nos. 18 and 20 thence proceeding in a south-westerly direction along Moor Street Bull Ring Digbeth and into along and terminating in High Street Deritend :

Tramway No. 25 (single line 9·41 chains in length) commencing in Hurst Street by a junction with the existing tramway thence proceeding in a south-easterly direction along Hurst Street Bishop Street and into along and terminating in Macdonald Street by a junction with Tramway No. 27 :



Tramway No. 26 (single line 5·23 chains in length) commencing in Sherlock Street by a junction with the existing tramway thence proceeding in a south-easterly direction into along and terminating in Macdonald Street by a junction with Tramway No. 27 : A.D. 1905.

Tramway No. 27 (double line 4 furlongs and 4·70 chains in length) commencing in Macdonald Street by a junction with Tramways Nos. 25 and 26 thence proceeding in a south-easterly direction along Macdonald Street Thomas Street Leopold Street and into along and terminating in Moseley Road by a junction with the existing tramway :

Tramway No. 28 (1 mile 4 furlongs and 7·30 chains in length whereof 2 furlongs and 0·17 chain are double and 1 mile 2 furlongs 7·13 are single) commencing in Lincoln Street by a junction with the existing tramway thence proceeding in a south-westerly direction along Lincoln Street Hallam Street Willows Road Edgbaston Road Cannon Hill Road Court Road Clevedon Road Balsall Heath Road Alexandra Road St. Luke's Road and into along and terminating in Sherlock Street by a junction with the existing tramway :

Tramway No. 29 (single line 2 furlongs and 2·58 chains in length) commencing in Moseley Road by a junction with the existing tramway thence proceeding in a north-westerly direction into along and terminating in Edward Road by a junction with the existing tramway :

Tramway No. 30 (single line 1·19 chains in length) commencing in Edward Road by a junction with the existing tramway thence proceeding in a south-westerly direction into along and terminating in Hallam Street by a junction with Tramway No. 28 :

Tramway No. 31 (single line 8·24 chains in length) commencing in Edward Road by a junction with the existing tramway thence proceeding in a north-westerly direction along and terminating in Edward Road by a junction with Tramway No. 28 :

Tramway No. 32 (single line 1·84 chains in length) commencing in Edward Road by a junction with Tramway No. 31 thence proceeding in a generally northerly direction into along and terminating in Court Road by a junction with Tramway No. 28 :



A.D. 1905.

Tramway No. 33 (4 furlongs and 7·25 chains in length whereof 1 furlong 6·48 chains are double and 3 furlongs 0·77 are single) commencing in Stratford Road by a junction with the existing tramway thence proceeding in a south-westerly direction along Stratford Road and into along and terminating in Stoney Lane :

Tramway No. 34 (double line 3·97 chains in length) commencing in John Bright Street by a junction with the existing tramway thence proceeding in a north-easterly direction into along and terminating in Navigation Street by a junction with Tramway No. 36 :

Tramway No. 35 (double line 2·81 chains in length) commencing in Navigation Street by a junction with Tramway No. 34 thence proceeding in a generally southerly direction into along and terminating in Hill Street by a junction with the existing tramway :

Tramway No. 36 (single line 1 furlong and 0·42 chain in length) commencing in Navigation Street by a junction with Tramway No. 34 at its termination thence proceeding in a north-easterly direction along Navigation Street Pinfold Street Stephenson Street and into along and terminating in Navigation Street by a junction with Tramway No. 34 :

Tramway No. 37 (double line 6 furlongs and 3·28 chains in length) commencing in John Bright Street by a junction with the existing tramway thence proceeding in a south-westerly direction into and along Holloway Head Bath Row and into and along and terminating in Islington Row by a junction with Tramway No. 38 :

Tramway No. 38 (1 mile 3 furlongs and 1·85 chains in length whereof 6 furlongs and 3·34 chains will be double line and 4 furlongs 8·51 chains will be single line) commencing in Islington Row by a junction with Tramway No. 37 thence proceeding in a north-westerly direction along Islington Row Ladywood Road Monument Road Icknield Port Road and into along and terminating in Dudley Road by a junction with the existing tramway :

Tramway No. 39 (double line 1·20 chains in length) commencing in Icknield Port Road by a junction with Tramway No. 38 thence proceeding in a north-easterly direction along Icknield Port Road and into along and terminating in Dudley Road by a junction with the existing tramway :



Tramway No. 40 (double line except as herein-after mentioned 1 furlong and 9·50 chains in length) commencing in Monument Road by a junction with Tramway No. 38 thence proceeding in a north-easterly direction along and terminating in Monument Road provided that between Great Tindal Street and Icknield Port Road the tramway shall be constructed as a single line and laid down as near the centre of the road as may be.

A.D. 1905.  
—

5.—(1) The tramways mentioned in the first column of the following table shall not be constructed unless and until the street works by this Act authorised mentioned in the second column thereof shall have been constructed:—

Certain tramways not to be laid until streets widened.

| Number of Tramway. | Nos. of Street Works.                                    |
|--------------------|----------------------------------------------------------|
| Tramway No. 4 - -  | Street Works Nos. 1 and 2.                               |
| Tramway No. 5 - -  | Street Works Nos. 1 and 3.                               |
| Tramway No. 6 - -  | Street Works Nos. 4 and 5.                               |
| Tramway No. 7 - -  | Street Work No. 5.                                       |
| Tramway No. 8 - -  | Street Work No. 4.                                       |
| Tramway No. 10 - - | Street Works Nos. 5 6 and 7.                             |
| Tramway No. 12 - - | Street Works Nos. 8 9 10 11 12 13 14 15 16 17 18 and 26. |
| Tramway No. 14 - - | Street Work No. 19.                                      |
| Tramway No. 24 - - | Street Works Nos. 20 21 22 and 23.                       |
| Tramway No. 25 - - | Street Work No. 24.                                      |
| Tramway No. 38 - - | Street Work No. 25.                                      |

(2) No portion of the tramways numbered respectively 1 2 3 4 5 7 10 11 12 14 15 16 17 18 19 20 21 24 26 27 28 29 30 33 34 35 36 37 38 39 and 40 shall be constructed until the roadway in which they are respectively situate shall have been widened by setting back the kerbs thereof to the extent shown on the deposited plans and the Corporation are accordingly empowered to set back such kerbs.

6. The tramways authorised by this Act shall be constructed on a gauge of three feet and six inches Provided that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways by this Act authorised but no carriage or engine used on such tramways shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade.

Gauge of tramway.



A.D. 1905.

For protec-  
tion of  
Midland  
Railway  
Company.

7. For the protection of the Midland Railway Company (herein-after in this section called "the Midland Company") the following provisions shall apply and have effect:—

- (1) So much of the tramways numbered respectively 1 12 14 17 24 34 35 and 37 as will cross over any tunnel or bridge carrying any road over any railway siding or work belonging to the Midland Company or pass under any railway bridge of the Midland Company shall be so constructed and maintained as not in any manner to obstruct or impede the traffic on the railway of the Midland Company or injuriously to affect the structure of the said tunnel and bridges or the approaches thereto:
- (2) In the event of any injury being caused to the structure of the said tunnel and bridges or the approaches thereto by the construction maintenance repairing user or removal of any of the said tramways by this Act authorised or the works in connexion therewith the Midland Company may at the expense of the Corporation restore the structure of such tunnel and bridges or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the reasonable costs of so doing shall be repaid to them by the Corporation:
- (3) Whenever and so often as the Midland Company shall require to widen lengthen strengthen reconstruct alter or repair any such bridges over their railway or to widen or alter their railways thereunder and it shall be necessary for effecting any of such purposes that the working and user of the tramways over such bridges should be wholly or partially stopped or delayed or that such tramways should be temporarily diverted or wholly or in part taken up or removed the Midland Company shall except in cases of emergency give to the Corporation fourteen clear days' notice in writing requiring such stoppage delay or diversion taking up or removal and the working and user of such tramways shall be stopped or delayed or such tramways shall be diverted or taken up or removed accordingly at the expense of the Corporation and under the superintendence of their



engineer (if such engineer shall give such superintendence) but only for so long as shall be absolutely necessary for effecting such purpose and without the Midland Company being liable for any compensation claims and demands charges costs and expenses for or in respect of such stoppage or delay or in any way relating thereto :

- (4) If having regard to the proposed position of any works by this Act authorised when considered in relation to the works of the Midland Company at the point where the proposed tramways will be constructed over or under the railway and works of the Midland Company it becomes advisable in order to avoid danger from the wires of the Corporation breaking or falling that the electric telegraphic telephonic or signal wires or apparatus of the Midland Company should be altered the Midland Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation :
- (5) If and when the Midland Company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Corporation has been placed the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be reasonably required by the principal engineer of the Midland Company unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer :
- (6) All works which may be necessary in constructing and maintaining the tramways or working the same by mechanical power under or over the said tunnel and bridges of the Midland Company shall be constructed and maintained to the reasonable satisfaction of the principal engineer of the Midland Company in such manner and according to plans sections and specifications to be previously submitted to and reasonably approved by him or in case of difference to be approved by an arbitrator to be appointed as herein-after provided :



A.D. 1905.

(7) The Corporation shall not for the purpose of electric traction make attachments to any part of the said bridges without the consent in writing of the principal engineer of the Midland Company which shall not be unreasonably withheld such attachments if allowed to be in all respects subject to the approval of the said engineer and to be temporarily removed at any time when required by him in connexion with the maintenance reconstruction or alteration of the said bridges :

(8) Any dispute or difference that may arise between the Midland Company and the Corporation with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be nominated by the Board of Trade on the application of the Corporation or the Midland Company and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Birmingham and Warwick Junction Canal Company.

8. The following provisions with respect to the construction of Tramway No. 14 upon the bridge carrying Garrison Lane over the canal belonging to the Birmingham and Warwick Junction Canal Company shall except so far as may be otherwise agreed between the canal company and the Corporation have effect namely :—

(1) The Corporation shall give fourteen days' notice in writing to the canal company of their intention to commence any works which will affect or in anywise interfere with the structural works of the said bridge and shall at the same time send sufficient plans sections and specifications or other information to show the nature of such works :

(2) If it shall be necessary to strengthen the said bridge owing to the weight of the carriages or other vehicles used on the tramways imposing upon such bridge a greater strain than such structure will probably sustain then such strengthening shall be effected at the expense of the Corporation and in such manner as to cause the least possible disturbance of the adjoining property of the canal company or the traffic on the canal :



(3) Any additional expenses incurred in maintaining the said bridge occasioned by the execution of any of the works by this Act authorised shall be borne by the Corporation : A.D. 1905.

(4) Any difference which may arise between the Corporation and the canal company as to any matter or thing referred to in this section shall be settled by an engineer or other fit person to be agreed between the parties in difference or failing agreement to be nominated as arbitrator by the Board of Trade on the application of either party.

9. In constructing and maintaining the tramways by this Act authorised and works connected therewith and in constructing and maintaining any works for the purpose of working any of the said tramways where the same are intended to cross any tunnel or bridge carrying any road over or under any railway railway siding or works belonging to the London and North Western Railway Company (herein-after in this section referred to as "the company") the following provisions shall have full force and effect:— For protection of London and North Western Railway Company.

(1) Before commencing any works (other than repairs) affecting the structure of any such tunnel or bridge the Corporation shall give fourteen days' notice in writing to the company of their intention to execute such works and such notice shall be accompanied by plans sections and specifications showing the nature and extent of the intended works :

(2) The Corporation shall not in any way vary alter or interfere with the structure of any such tunnel or bridge and in the construction and maintenance of the tramway and works over such tunnel or bridge or under such bridges as the case may be the Corporation shall not injuriously affect the said structure :

(3) In the event of any injury being caused to such tunnel or bridge by the construction maintenance repairing user or removal of the said tramways and works the company may at the expense of the Corporation restore such tunnel or bridge or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the Corporation shall indemnify the company against



A.D. 1905.

all sums costs and expenses which they may reasonably pay or be put to in repairing or maintaining so much of the road over such tunnel or bridge as the Corporation are liable to maintain and repair under section 28 of the Tramways Act 1870 and the company may recover from the Corporation all such costs and expenses :

(4) Whenever and so often as the company shall require to widen lengthen strengthen reconstruct alter or repair any such bridges over their railway or to widen or alter their railways thereunder and it shall be necessary for effecting any of such purposes that the working and user of the tramways over such bridges shall be wholly or partially stopped or delayed or that the tramway should be temporarily diverted or wholly or in part taken up or removed the company shall except in case of emergency (when they shall give the longest notice practicable) give to the Corporation one month's notice in writing requiring such stoppage delay or diversion taking up or removal and the working and user of the tramway shall be stopped or delayed or such tramways shall be diverted or taken up or removed accordingly at the expense of the Corporation and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as shall be absolutely necessary for effecting such purpose and without the company being liable for any compensation claims demands damages costs and expenses for or in respect of such stoppage or delay or in any way relating thereto :

(5) In case any such strengthening reconstruction or alteration is rendered necessary owing to the carriages or other vehicles used on any such tramway being or being intended to be moved by mechanical power the company shall before effecting the same give to the Corporation fourteen clear days' notice and such strengthening reconstruction or alteration shall be effected in all things at the expense of the Corporation who shall also pay to the company any additional expense which they may incur or be put to in effecting any such strengthening reconstruction or alteration or



any widening lengthening or repairing by reason of the existence of the tramways or any of the works connected therewith: A.D. 1905.

- (6) All works which may be necessary in constructing and maintaining any tramway or for working the tramways by mechanical power over any such bridge shall be constructed and maintained in all things at the expense of the Corporation and to the reasonable satisfaction of the principal engineer of the company or in case of difference of an engineer to be appointed by the Board of Trade on the application of either the company or the Corporation:
- (7) During the construction of the said tramways and works the Corporation shall bear and on demand pay to the company all reasonable expense of employment by them of a sufficient number of inspectors or watchmen to be appointed by the company for watching their railways and works thereof with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident which may arise from any of the operations or from the acts or defaults of the Corporation or their contractors or any person or persons in the employment of the Corporation or their contractors with reference thereto or otherwise:
- (8) In the event of any of the tramways being worked by electricity on the overhead system no stays posts wires or other apparatus shall without the previous consent in writing of the company which shall not be unreasonably withheld be attached to any bridge or other work of the company:
- (9) If having regard to the proposed position of any works by this Act authorised when considered in relation to the works of the company it becomes advisable in order to avoid danger from the wires of the Corporation breaking or falling that the electric telegraphic telephonic or signal wires or apparatus of the company should be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation:



A.D. 1905.  
---

(10) If and when the company shall require to repair or paint any bridge under their railway the Corporation shall in order to ensure the safety of the workmen employed in such repairing or painting cut off the electric current from the trolley wires under such bridge at such times as shall be reasonably required by the said principal engineer of the company and so as not to unduly interfere with the traffic on the tramways unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said principal engineer :

(11) Where any tramways will pass in front of the entrances to any passenger or goods station of the company no carriage used on the tramways shall be stopped or be permitted to be stopped for the distance thereon extending in front of the said entrances to such stations and for a length of ten yards at each end of such distance without the consent of the chief engineer of the company except for and only for so long as shall be reasonably necessary for the purpose of discharging and taking up passengers and except when such stoppage is occasioned by circumstances over which the Corporation have no control :

(12) The Corporation and the company may agree for any variation or alteration in the works in this section provided for or in the manner in which the same shall be executed :

(13) If any difference shall arise between the Corporation and the company or their respective engineers as to the reasonableness of the plans sections and specifications herein-before provided for or otherwise under this section such difference shall be referred to and be determined by an arbitrator to be appointed by the Board of Trade on the application of either party :

Provided that nothing in this section contained shall apply to the bridges carrying Navigation Street over the company's railway until reconstructed by the company.

For protec-  
tion of Great  
Western  
Railway  
Company.

10. For the protection of the Great Western Railway Company (in this section herein-after referred to as "the Great Western Company") the following provisions shall unless



otherwise agreed between the Corporation and the Great Western Company apply and have effect:— A.D. 1905.

- (1) Before commencing any works (other than repairs) affecting the structure of any tunnel or bridge the Corporation shall give fourteen days' notice in writing to the company of their intention to execute such works and such notice shall be accompanied by plans sections and specifications showing the nature and extent of the intended works:
- (2) The Corporation shall not in any way vary alter or interfere with the structure of any such tunnel or bridge and in the construction and maintenance of the tramway and works over such tunnel or bridge or under such bridges as the case may be the Corporation shall not injuriously affect the said structure:
- (3) In the event of any injury being caused to such tunnel or bridge by the construction maintenance repairing user or removal of the said tramways and works the company may at the expense of the Corporation restore such tunnel or bridge or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the Corporation shall indemnify the company against all sums costs and expenses which they may reasonably pay or be put to in repairing or maintaining so much of the road over such tunnel or bridge as the Corporation are liable to maintain and repair under section 28 of the Tramways Act 1870 and the company may recover from the Corporation all such sums costs and expenses:
- (4) If by reason of the construction of the tramways over any such bridge tunnel or other work or the user thereof it becomes necessary to strengthen or reconstruct the same the Great Western Company shall give notice accompanied by sufficient plans and specifications to the Corporation of such works as may be reasonably necessary and may after fourteen days from the date of the notice or forthwith in case of emergency proceed with all due despatch to execute the same but in all things at the expense of the Corporation and the Great Western Company may recover from the Corporation all moneys reasonably expended by them in the execution of such works as aforesaid:



- (5) The Corporation shall on demand pay to the Great Western Company the reasonable expense of lighting and watching the works of the Great Western Company during the execution or repair by the Corporation under this Act of any work or apparatus affecting any bridge tunnel railway or other work belonging to the Great Western Company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them or otherwise:
- (6) The Corporation shall not in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the Great Western Company or any traffic thereon:
- (7) The Corporation shall be responsible for and make good to the Great Western Company all losses damages and expenses which may be occasioned to the Great Western Company or any of their works or to any company or person using their railways by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for the intended works or any part thereof and the Corporation shall effectually indemnify and hold harmless the Great Western Company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission:
- (8) Whenever and so often as the Great Western Company shall require to widen lengthen strengthen reconstruct alter or repair any such bridges over their railway or to widen or alter their railways thereunder or under Moor Street and it shall be necessary for effecting any of such purposes that the working and user of the tramways over such bridges or the tunnel under should be wholly or partially stopped or delayed or that such tramways should be temporarily diverted or wholly or in part taken up or removed the Great Western Company shall (except in cases of emergency when they shall give the longest notice practicable) give to the



Corporation one month's notice in writing requiring such stoppage delay or diversion taking up or removal and the working and user of such tramways shall be stopped or delayed or such tramways shall be diverted or taken up or removed accordingly at the expense of the Corporation and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as shall be absolutely necessary for effecting such purpose and without their being liable for any compensation claims and demands charges costs and expenses for or in respect of such stoppage or delay or in any way relating thereto: A.D. 1905.

- (9) The Corporation shall not for the purpose of electric traction make attachments to any part of the said bridges without the consent in writing of the principal engineer of the Great Western Company which shall not be unreasonably withheld such attachments if allowed to be in all respects subject to the approval of the said engineer and to be temporarily removed at any time when required by him in connexion with the maintenance reconstruction or alteration of the said bridges:
- (10) If having regard to the proposed position of any works of the Corporation by this Act authorised when considered in relation to the position of the works of the Great Western Company at any point where the tramways will be constructed over the railway or other works of the Great Western Company it becomes advisable in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the Great Western Company shall be altered the Great Western Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation:
- (11) If and when the Great Western Company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Corporation has been placed the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at



A.D. 1905.

such time as shall be reasonably required by the engineer of the company unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer:

- (12) Except as in this section otherwise provided if any difference arises under this section between the Corporation and the Great Western Company the same shall unless otherwise agreed be settled by an arbitrator to be appointed by the Board of Trade on the application of either party.

Works to form part of tramway undertaking of Corporation.

11. The tramways and works authorised by the foregoing provisions of this Act shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of Part III. (Tramways) of the Act of 1903 and of the enactments incorporated with that Act and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to all the said tramways and works as if they had been authorised by Part III. of the Act of 1903 and were Corporation tramways within the meaning of that Act.

Corporation may reduce width of footway.

12. For the purpose of constructing or reconstructing any Corporation tramways in any street within the city the Corporation may increase the width of the carriageway of such street by reducing the width of the footway on each or either side of such street Provided that any footway shall not be reduced to such an extent as to be less than six feet wide.

Period for completion of tramways.

13. Such of the tramways as are proposed to be constructed in streets to be widened or improved in pursuance of this Act shall be completed within two years after the widening or improvement of such streets respectively and within a period of seven years from the passing of this Act and the remainder of the tramways shall be completed within five years from the passing of this Act and on the expiration of those periods respectively the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Lands for generating and transforming stations and tramway purposes.

14. The Corporation may erect maintain and use on the lands described in the First Schedule to this Act a station or stations for producing and generating transforming storing and applying electric power with all such buildings engines batteries



dynamo accumulators and other plant machinery apparatus works and conveniences as may be necessary or suitable for such purposes and may produce generate transform store use and apply power accordingly and may also upon the said lands erect construct maintain and hold depôts yards wharves offices buildings sidings works and other conveniences in connexion with their tramway undertaking. A.D. 1905.

**15.—**(1) The whole width of the carriageway in that part of Edgbaston Road which lies between Willows Road and Cannon Hill Road and along which part of Tramway No. 28 is authorised to be laid shall for tramway purposes be deemed to be within the city. Certain streets along which city boundary passes deemed to be within city.

(2) The whole width of the carriageway in that part of Stoney Lane which lies between Stanley Road and Esme Road along which part of Tramway No. 33 is authorised to be laid shall for tramway purposes be deemed to be within the city.

**16.** The Corporation may form junctions between any Corporation tramways or between any Corporation tramways and any tramway which can be worked in connexion therewith but only (except where otherwise provided) with the consent of the owners and lessees thereof. Junctions with tramways.

**17.** The Corporation may in connexion with their tramway undertaking erect and maintain shelters or waiting rooms for the accommodation of passengers and of the Corporation's servants and may use for that purpose portions of the public streets within the city. Shelters or waiting rooms.

**18.** The Corporation may run through cars along any of the routes of the Corporation tramways or any specified portion thereof and such cars shall be distinguished from other cars in such manner as may be directed by the Corporation and they may demand and take for every passenger by such cars a fare or charge not exceeding the authorised maximum fare allowed in respect of the whole of such route or the whole of the portion thereof traversed by any such car. As to running through cars and charges for same.

**19.—**(1) The Corporation may from time to time make regulations with respect to those streets in the city to be specified in the regulations in which any Corporation tramways are constructed or which are specially liable to be obstructed by reason of the amount or nature of the traffic requiring the drivers of slow-moving vehicles to keep their vehicles to a particular portion of the street. Regulations as to street traffic.



A.D. 1905.  
—

(2) All regulations under this section shall be subject to the approval of the Secretary of State and shall be published in such manner as he may direct.

(3) Any person who shall contravene any such regulation after warning given by word or signal by a police constable stationed in the street to direct the traffic shall be liable to a penalty not exceeding forty shillings.

As to  
junctions  
and level  
crossings.

20.--(1) Notwithstanding the terms of any lease of the existing tramways within the city the Corporation may execute such works as may be necessary to effect junctions between the tramways by this Act authorised and the existing tramways within the city and also such works as may be necessary to cross on the level the existing tramways in Corporation Street Bloomsbury Street Fazeley Street Digbeth Edward Road and Horse Fair and they may run carriages over such level crossings.

(2) All such works relating to the said junctions and crossings shall be constructed and maintained by the Corporation in such manner and according to plans sections and specifications to be first submitted to and reasonably approved by the engineer of the lessees of the existing tramways respectively.

(3) All such works relating to the said junctions and crossings shall be carried on uninterruptedly when commenced and shall be completed with all reasonable dispatch and shall be constructed and maintained by the Corporation so that the traffic on the existing tramways now in lease to the City of Birmingham Tramways Company Limited and Birmingham and Midland Tramways Limited shall not except to such extent as may be agreed upon between the Corporation and the said lessees or failing agreement be determined by arbitration be in any way obstructed impeded or interfered with and such maintenance shall be effected under the superintendence and to the reasonable satisfaction of the engineer of the said lessees.

(4) The Corporation shall use the junctions and level crossings subject to such regulations as may be agreed upon between the Corporation and the said lessees or failing agreement be determined by the Board of Trade.

(5) No engine or carriage belonging to the Corporation shall be allowed to stand on the level crossings.

(6) The Corporation shall pay to the said lessees full compensation for any injury or damage sustained by them in respect



of any works constructed by the Corporation under this section or of the running over the level crossings. A.D. 1905.

(7) Any question or difference which may arise between the Corporation and the said lessees under the provisions of this section shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either party.

(8) The provisions of this section so far as they relate to the City of Birmingham Tramways Company Limited and Birmingham and Midland Tramways Limited shall cease to operate on the termination of the existing leases to them respectively.

(9) Except as provided by this section nothing in this Act contained or shown on the deposited plans or sections shall prejudice or affect any existing lease or agreement for lease of any tramways belonging to the Corporation or authorise the Corporation to run over or in any way interfere with any of such tramways during the continuance of any such lease or agreement for lease except so far as may be agreed upon between the Corporation and the lessees respectively.

### PART III.

#### STREET WORKS AND LANDS.

**21.** Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the following street widenings improvements and street works (in this Act called "street works") in the city with all proper approaches embankments bridges arches girders retaining walls works and conveniences connected therewith or incident thereto (that is to say):—

Power to  
make street  
works.

Street Work No. 1 An improvement of the south-western corner of All Saints Street and Lodge Road :

Street Work No. 2 A widening of Lodge Road on the northern side :

Street Work No. 3 A widening of Park Road on the north-eastern side :

Street Work No. 4 A widening of Dale End on the south-eastern side :

Street Work No. 5 A widening of Coleshill Street on the south-eastern side :

Street Work No. 6 A widening of Ashted Row on the north-western side :



A.D. 1905.

- Street Work No. 7 A widening of Ashted Row on the northern side :
- Street Work No. 8 A widening of Washwood Heath Road on the south-eastern side :
- Street Work No. 9 A widening of Washwood Heath Road on the north-western side :
- Street Work No. 10 A further widening of Washwood Heath Road on the north-western side :
- Street Work No. 11 A widening of Washwood Heath Road on the southern side :
- Street Work No. 12 A widening of Washwood Heath Road on the north-eastern side :
- Street Work No. 13 A widening of Washwood Heath Road on the south-western side :
- Street Work No. 14 A further widening of Washwood Heath Road on the north-eastern side :
- Street Work No. 15 A further widening of Washwood Heath Road on the north-eastern side :
- Street Work No. 16 A widening of Washwood Heath Road on the south-western and southern side :
- Street Work No. 17 A further widening of Washwood Heath Road on the north-eastern side :
- Street Work No. 18 A further widening of Washwood Heath Road on the north-eastern side :
- Street Work No. 19 A widening of Fazeley Street on both sides :
- Street Work No. 20 A widening of Moor Street on the south-eastern side :
- Street Work No. 21 A widening of Digbeth on the north-eastern side :
- Street Work No. 22 A widening of Digbeth on the south-western side :
- Street Work No. 23 A further widening of Digbeth on the north-eastern side :
- Street Work No. 24 An improvement of the north-eastern corner of Bishop Street and Macdonald Street :
- Street Work No. 25 A widening of Ladywood Road on the south-western side :



Street Work No. 26 A widening of Saltley Road on the southern side : A.D. 1905.

Street Work No. 27 A widening of Saltley Road on the northern side :

Street Work No. 28 A widening of Lancaster Street and Newtown Row on the north-eastern side :

Street Work No. 29 A widening of Lancaster Street and Newtown Row on the south-western side.

22. In the construction of the street works authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards. Limits of deviation.

23. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connexion with the street works authorised by this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer, channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water in any main or pipe or of electricity in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section. Provided that the Corporation shall not alter divert or interfere with any pipe wire or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878. Provided further that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section. Subsidiary works.

24. Subject to the provisions of this Act the Corporation may during the execution and for the purposes of any street works authorised by this Act from time to time stop up any street Temporary stoppage of streets.



A.D.1905. and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time but convenient access to the houses in such street shall be provided by the Corporation.

Power to acquire lands.

25. Subject to the provisions and for the purposes of this Act (including the providing of space for the erection of buildings adjoining or near to any street) the Corporation may enter on take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited books of reference Provided that the Corporation shall not enter upon purchase take or use any of the lands numbered 519 on the deposited plans except with the consent in writing of a Secretary of State.

For further protection of London and North Western Railway Company.

26. In acquiring the land and buildings in Moor Street numbered 477 478 and 479 upon the plans deposited in connexion with the said Bill the Corporation shall not acquire any interest in the railway or works of the London and North Western Railway Company situate in or under the same and in constructing the Street Widening No. 20 they shall not do anything which may cause injury or damage to the tunnel or works of the London and North Western Railway Company or do anything likely to impede the safe and convenient conduct of the traffic on their railway.

Correction of errors in deposited plans and books of reference.

27. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Warwick for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans or books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.



**28.** The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of five years from the passing of this Act.

Limiting time for compulsory purchase of lands.

**29.** The Corporation in addition to the lands described in the First Schedule to this Act and to any other lands which they are by this Act authorised to acquire may by agreement purchase take on lease acquire and hold for the purposes of their tramway undertaking and of this Act any additional lands not exceeding in the whole fifteen acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such additional lands.

Power to purchase additional lands by agreement.

**30.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to persons under disability to grant easements &c.

**31.** Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain lands and buildings.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described or referred to in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":

(2) If for twenty-one days after service of notice to treat in respect of a specified portion of any of the scheduled



A.D. 1905.

properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by them determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in their absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:



(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice: A.D. 1905.

(7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in or endorsed upon every notice given thereunder to sell and convey any premises.

**32.** And whereas in order to avoid in the execution and maintenance of any street works authorised by this Act injury to the houses buildings and structures within one hundred feet of any such works it may be necessary to underpin or otherwise strengthen the same Therefore the Corporation at their own costs and charges may and if required by the owners or lessees of any such house building or structure shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say) :—

Under-  
pinning of  
houses near  
works.

(1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers



A.D. 1905.

or by the owners or lessees of the house building or structure so intended or so required to be underpinned or otherwise strengthened:

- (2) Each such notice if given by the Corporation shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the town clerk's office in the council house in the city:
- (3) If any owner lessee or occupier of any such house building or structure or the Corporation as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade:
- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house building or structure and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Corporation may and shall proceed forthwith so to underpin or strengthen the said house building or structure:
- (5) The Corporation shall be liable to compensate the owners lessees and occupiers of every such house building or structure for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house building or structure shall have been underpinned or strengthened on the requisition of the Corporation such underpinning or strengthening shall prove inadequate for the support or protection of the house building or structure against further injury arising from the execution or use of the works of the Corporation then and in every such case unless such underpinning or strengthening shall



have been done in pursuance of and in the mode prescribed by the referee the Corporation shall make compensation to the owners lessees and occupiers of such house building or structure for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:

A.D. 1905.

- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Corporation from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts: .
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

**33.** For the purpose of determining any question of disputed compensation payable in respect of lands taken for the purposes of the street works authorised by this Act the following provisions shall apply and for the purposes of this section the expression "owner" shall mean the owner of and persons interested in the lands required by the Corporation:—

Provisions as to compensation.

- (1) The tribunal shall take into account any permanent increase in value of any lands retained by or belonging to the owner which in the opinion of the tribunal will result from or be caused by the construction of the works for or in connexion with which the lands are required and generally all the other circumstances of the case which it is equitable to consider:
- (2) The tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of January one thousand nine hundred and five if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.



A.D. 1905.

Costs of  
arbitration  
&c. in certain  
cases.

**34.** The following provisions shall apply with respect to any lands taken for the purposes of the street works authorised by this Act namely:—

- (1) The tribunal shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that injustice has thereby occurred such part of the costs of the proceedings before the tribunal as the tribunal shall decide shall be defrayed by such claimant and the remaining part shall be defrayed by the Corporation anything in the Lands Clauses Consolidation Act 1845 to the contrary notwithstanding:
- (2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation for any reasonable cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case:
- (3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contains or is endorsed with a notice of the effect of this section.

Power to  
retain sell  
&c. lands.

**35.** Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or



any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. A.D. 1905.

**36.** As to any addition to the borough rate made by the Corporation or under any precept from or at the instance or by the direction of the Corporation for the purposes or any of the purposes of street works mentioned in subsection (c) of the section of this Act the marginal note whereof is "Power to borrow" the owner or occupier of any land used only as a railway constructed under the powers of any Act of Parliament for public conveyance or land covered with water or used only as a canal or towing path for the same shall be assessed in respect of the same in the proportion of one-fourth part only of the net annual value thereof as ascertained by the valuation list for the time being in force or if there be none by the rate for the relief of the poor made next before the making of such assessment. The Local Government Board may from time to time by order make such regulations as seem to the Board necessary or proper respecting the form of the rates notices and accounts to be made used and kept by the overseers of any parish situate wholly or partly in the city with respect to any addition made under the powers of this Act to any borough rate and to any assessment in respect thereof and an order under this section shall be deemed to be an order within the meaning of section 98 of the Poor Law Amendment Act 1834. Railways and canals to be rated at one fourth only of the net annual value thereof.

#### PART IV.

##### WATER.

**37.** Until the measuring apparatus referred to in section 29 (Gauge to be provided) of the Act of 1892 is fixed and the Caban Coch Reservoir is filled the Conservators shall not under subsection (2) of section 28 of the Act of 1892 require the Corporation to accumulate water nor at any time thereafter to discharge accumulated water while the said measuring apparatus or any part thereof is under repair or renewal. Until the said measuring apparatus is fixed and the Caban Coch Reservoir is filled up to such level as shall permit of the same being used (but in no case later than the thirty-first day of December one Amendment of s. 28 of Act of 1892.



A.D. 1905. thousand nine hundred and six) the Corporation shall continue to maintain and use the temporary apparatus which with the consent of the Conservators and of the corporation of the city of Hereford has been fixed by the Corporation but the Corporation shall fill the said reservoir up to such level as soon as may be practicable.

Power to use water for generating power or light.

**38.** It shall be lawful for the Corporation notwithstanding anything contained in the Act of 1892 to utilise any pipe or culvert for the time being provided for the discharge from the Caban Coch Reservoir of any compensation water and any such water for the purposes of generating power or light and generally for use in connexion with the works authorised by the Act of 1892 or any Act amending that Act as the Corporation think fit Provided always that all water which enters the said pipe or culvert at the inlet end shall be discharged through the measuring apparatus for the time being in use Provided also that during its passage through any such pipe or culvert the water shall not be fouled or contaminated in any way.

Amendment of s. 36 of Act of 1892.

**39.** Section 36 (Corporation to provide house for inspector of Wye Fishery Conservators) of the Act of 1892 shall be read and have effect as if the word "forthwith" had been omitted from such section and as if the words "within one mile below the dam" were substituted for the words "within forty chains from the dam" and as if the words "not less than half an acre of land" were substituted for the words "not less than one acre of land" Provided that the Corporation shall on or before Michaelmas Day next after the passing of this Act tender to the Conservators the lease referred to in the said section in accordance with that section as amended by this section.

## PART V.

### BORROWING POWERS AND MISCELLANEOUS PROVISIONS.

Power to borrow.

**40.—(1)** The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes herein-after mentioned any sum or sums of money not exceeding the respective amounts following :—

(a) For and in connexion with the construction of the tramways by this Act authorised the sum of two hundred and ninety-six thousand pounds :

(b) For the reconstruction of existing tramways and the electrical equipment of Corporation tramways including the purchase of land for and the construction of gene-



rating and transforming electrical works and tramway depôts and works the sum of five hundred and fifty-five thousand pounds: A.D. 1905.  
—

(c) For and in connexion with the purchase of land for and the execution of street works by this Act authorised the sum of two hundred and three thousand pounds:

(d) For paying the costs of this Act as herein-after provided the sum requisite for that purpose.

(2) In addition to the moneys which the Corporation are by this section authorised to borrow they may borrow such further sums of money for tramway purposes as the Board of Trade may sanction and for any of the other purposes of this Act such further sums of money as the Local Government Board may sanction.

(3) For the purpose of this section the street works including the lands purchased therefor shall be deemed purposes of the tramway undertaking of the Corporation.

(4) In order to provide for the repayment of moneys borrowed under this section and the payment of interest thereon the revenue of the tramway undertaking of the Corporation is hereby made specially liable and such moneys are hereby primarily chargeable thereon. Provided that in regard to any borrowed moneys which under the provisions of this Act the Corporation may assign to their electricity undertaking the revenue of that undertaking is hereby made specially liable and such moneys are hereby primarily chargeable thereon.

41.—(1) The Corporation may raise all or any sums which they are authorised to borrow under this Act either by the creation and issue of Birmingham Corporation stock or by mortgage. Moneys to be raised.

(2) Any moneys borrowed under this Act by way of mortgage shall be deemed to be principal moneys within the meaning of the Act of 1903 and such moneys shall be raised in accordance with and subject to the provisions of that Act.

42. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following (that is to say):— Period for repayment.

As to moneys borrowed for the purpose (a) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within thirty years from the date or dates of borrowing the same:



A.D. 1905.

As to moneys borrowed for the purpose (b) in the said section mentioned within twenty-five years from the date or dates of borrowing the same :

As to moneys borrowed for the purpose (c) in the said section mentioned within sixty years from the date or dates of borrowing the same :

As to moneys borrowed for the purpose (d) in the said section mentioned within five years from the passing of this Act :

As to moneys borrowed with the sanction of the Board of Trade or of the Local Government Board within the periods sanctioned by those Boards respectively.

Section 147  
of Act of  
1903 to apply  
to this Act.

**43.** Section 147 (Corporation may determine to which undertaking expenses &c. to be assigned) of the Act of 1903 shall extend and apply to moneys borrowed under this Act and to the keeping of accounts in respect of tramways authorised by this Act.

Audit of  
accounts.

**44.** The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Recovery of  
penalties.

**45.** Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts.

Provision as  
to general  
Tramway  
Acts.

**46.** Nothing in this Act contained shall exempt the Corporation or the tramways by this Act authorised from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act.

Costs of Act.

**47.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and rate or out of moneys to be borrowed under this Act.



The SCHEDULES referred to in the foregoing Act. A.D. 1905.

## THE FIRST SCHEDULE.

### LANDS FOR TRAMWAY PURPOSES.

1. All that piece of land situate in the parishes of Aston and Birmingham in the city of Birmingham bounded on the north by Miller Street on the east by Elkington Street on the west by land belonging or reputed to belong to the Governors of the Grammar Schools of King Edward the Sixth and on the south by lands belonging or reputed to belong to John Walker Mrs. J. Tyler A. G. Ireland Robert Rigby and the Vicar and Churchwardens of St. Stephen's Church New Town Row which said piece of land contains 6933 square yards or thereabouts.

2. All that piece of land situate in the parish of Aston in the city of Birmingham bounded on the north by Coventry Road on the south by land belonging or reputed to belong to the Ada Road Bible Class Company and George Harris on the east by Herbert Road and land belonging or reputed to belong to William Bradbury and Charles George and on the west by Arthur Street which said piece of land contains 6198 square yards or thereabouts.

3. All that piece of land situate in the parish of Aston in the city of Birmingham bounded on the north by Washwood Heath Road on the south and east by land belonging or reputed to belong to Mrs. Wakeman Newport and on the west by land belonging or reputed to belong to Atkinson's Brewery Limited Mrs. Mary Potter and the London and North Western Railway Company which said piece of land contains 2 acres or thereabouts.

4. All that piece of land situate in the parish of Balsall Heath in the city of Birmingham bounded on the north-east by Highgate Road on the south-west by land belonging or reputed to belong to Mrs. Matilda Heath on the south-east by land belonging or reputed to belong to Mrs. A. Lardner Frederick Smith Mrs. L. Taylor Mrs. Sarah Ann Smallwood Alfred G. Hudson and the trustees of the Primitive Methodist Chapel Queen Street and on the north-west by land belonging or reputed to belong to James White and Miss Sarah Sill which said piece of land contains 2973 square yards or thereabouts.

5. All that piece of land situate in the parish of Balsall Heath in the city of Birmingham bounded on the north by land belonging or reputed to belong to Francis Joseph Berridge and Mrs. Rebecca Hoskins on the south by Trafalgar Road on the east by land belonging or reputed to belong to the Corporation and on the west by Moseley Road which said piece of land contains 3822 square yards or thereabouts.



A.D. 1905.

6. All that piece of land situate in the parish of Balsall Heath in the city of Birmingham bounded on the north by land belonging or reputed to belong to Mrs. Rebecca Hoskins Mrs. Harriett White and John Wathen on the south by Trafalgar Road on the east by land now or lately belonging or reputed to belong to the trustees of William Gent deceased and on the west by land belonging to or reputed to belong to the Corporation which said piece of land contains 2380 square yards or thereabouts.

7. All that piece of land situate in the parish and city of Birmingham bounded on the south-west by Rosebery Street on the south-east by land and property belonging or reputed to belong to Mrs. Elizabeth Wynn and Messrs. L. C. & P. Lea on the north-east by Camden Street and on the north-west by land and property belonging or reputed to belong to Messrs. E. Lloyd & Co. and Henry E. Lane which said piece of land contains 4500 square yards or thereabouts.

## THE SECOND SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE  
REQUIRED BY THE CORPORATION.

| Area.                  | Numbers on deposited Plans.                                                                                                                                                                                                       |
|------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| City of Birmingham - - | 226 229 230 231 335 to 347 357 to 360 362 to<br>376 377 to 385 387 388 390 392 to 399 401<br>402 404 405 407 408 409 411 415 416 418 to<br>423 425 to 431 433 to 436 440 to 452 454 to<br>461 465 466 467 544 545 546 548 to 555. |

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from  
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or  
OLIVER AND BOYD, EDINBURGH; or  
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.